

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 4, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV01700

WELLS FARGO BANK, NA v. RATNAGOPAL

PLAINTIFF WELLS FARGO BANK’S MOTION TO VACATE DISMISSAL AND TO ENTER JUDGMENT PURSUANT TO CCP §664.6

The parties shall appear and update the Court on their settlement efforts.

No. 25CV03816 (related to 24CV02263)

WOODS v. PACIFIC BELL, et al

DEMURRER TO COMPLAINT

This motion is continued to October 20, 2026.

Plaintiff brings this action for damage to a bridge on his property. Plaintiff contends the damage was caused by the negligent acts of an AT&T service technician.

On August 9, 2024, plaintiff Woods (“Woods”) filed a complaint (24CV02263) against Pacific Bell dba AT&T, Old Republic Insurance Company, Marsh USA, Inc., and Sedgwick Claims Management Services, Inc. for negligence, vicarious liability, breach of contract, promissory estoppel, breach of implied duty of good faith and fair dealing, intentional interference with prospective economic advantage, violation of Business and Professions Code section 17200, and fraudulent deceit. This case was dismissed with prejudice on February 6,

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2025. Woods moved to set aside the dismissal in this case and this motion was taken under submission by the Court on June 26, 2026.

On December 2, 2025, Woods filed this case (25CV03816) against Pacific Bell dba AT&T, Sedgwick Claims Management Services, Inc., Old Republic Title Insurance Company; and Marsh USA, Inc., alleging negligence, trespass, private nuisance, negligent infliction of emotional distress, breach of contract, breach of implied covenant of good faith and fair dealing, negligent hiring/supervision, negligent claims handling, violation of California Insurance Code section 790.03, subdivision (h), violation of Business and Professions Code section 17200, promissory fraud/concealment/negligent misrepresentation, and declaratory relief. This complaint “arises from catastrophic structural damage caused by an AT&T subcontractor on December 6, 2022, when the contractor ignored posted warnings and drove a vehicle across Plaintiff’s private wooden bridge, causing a partial collapse, severe lateral displacement, and complete structural failure.” (Comp. at p. 3.)

On May 7, 2026, defendants filed this demurrer, arguing that this second lawsuit is nearly identical to the related case which has already been dismissed, and so this action is barred by claim preclusion. In opposition, Woods argues the Court should overrule the demurrer or overrule as to the claims not raised in the prior action and grant leave to amend or it should stay the demurrer pending resolution of the motion to vacate in case no. 24CV02263 as that motion, if granted, “would eliminate the entire predicate for Defendants’ res judicata defense.” (Opp. at p. 2.)

This motion is continued to October 20, 2026. By this date the Court will have ruled on the motion to set aside and vacate the dismissal in the related case which will have an impact on this demurrer.

DEFENDANTS’ REQUEST FOR JUDICIAL NOTICE

1. Notice of Motion and Motion to Set Aside and Vacate Dismissal in case no. 24CV02263. Granted.
2. Request for Judicial Notice in Support of Motion to Set Aside and Vacate Dismissal in case no. 24CV02263. Granted.
3. Declaration of Heather Tovar in Support of Motion to Set Aside and Vacate Dismissal of Complaint in case no. 24CV02263. Granted.
4. Declaration of Thomas Woods in Support of Motion to Set Aside and Vacate Dismissal in case no. 24CV02263. Granted.
5. Notice of Lodging in Support of Motion to Set Aside and Vacate Dismissal in case no. 24CV02263. Granted.
6. Opposition to Plaintiff’s Motion Set Aside Dismissal in case no. 24CV02263. Granted.

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7. Declaration of Colin G. Furlow in Support of Opposition to Plaintiff's Motion to Set Aside Dismissal in case no. 24CV02263. Granted.
8. Reply to Opposition to Plaintiff's Motion to Set Aside Dismissal in case no. 24CV02263. Granted.
9. Supplemental Declaration of Thomas Woods in Support of Reply to Opposition to Plaintiff's Motion to Set Aside Dismissal in case no. 24CV02263. Granted.
10. Declaration of Gary Saunders in Support of Reply to Opposition to Plaintiff's Motion to Set Aside Dismissal in case no. 24CV02263. Granted.
11. Sur Reply filed in Support of Opposition to Motion to Set Aside Dismissal in case no. 24CV02263. Granted.
12. Transcript of Remote Proceeds for Plaintiff's Motion to Set Aside Dismissal on June 26, 2026, in case no. 24CV02263. Granted for the existence of the record.